

26STCV18619 26STCV18619

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-08-18

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Case Number: 26STCV18619 Hearing Date: August 18, 2026 Dept: 310

Tentative

Ruling

Judge Kevin

C. Brazile

Department 310

Hearing Date: August

18, 2026

Case Name: Aguilar

v. Mobilias Insurance Company, et al.

Case No.: 26STCV18619

Matter: Petition

to Consolidate Arbitrations

Moving Party: Petitioner

Wilfredo Aguilar

Responding Party: Respondent

United States Fire Insurance Company

Notice: OK

Ruling: The Petition is granted.

Petitioner
to give notice.

The Court encourages all parties to
appear remotely via LA CourtConnect. If
submitting on the Court's tentative ruling, please follow the instructions
provided above.

This matter stems from a motor
vehicle collision occurring on December 19, 2023, while Petitioner Wilfredo
Aguilar was operating a vehicle for rideshare services (Lyft). At the time of
the collision, Petitioner was covered under two separate insurance policies
relevant to this dispute: (a) an automobile insurance policy issued by
Mobilitas Insurance Company providing Uninsured/Underinsured Motorist (UM/UIM)
coverage pursuant to Insurance Code section 11580.2, and (b) an Occupational
Accident Insurance (OAI) policy issued by United States Fire Insurance Company
providing benefits for injuries sustained during rideshare operations.

Both policies contain provisions
requiring disputes over benefits to be resolved via binding arbitration.
Petitioner served demands for arbitration upon both carriers. Respondent
Mobilitas does not oppose consolidation into a single proceeding. Respondent
United States Fire Insurance Company opposes consolidation, contending that the
contractual OAI claim and statutory UM/UIM claim involve distinct legal
standards and policy terms and cannot be consolidated under Code of Civil
Procedure section 1281.3.

Petitioner now moves to consolidate
the proceedings into a single joint arbitration to avoid procedural paralysis,
conflicting allocations of responsibility, and unnecessary delay.

Under California Code of Civil
Procedure section 1281.3, a court may order consolidation of separate
arbitration proceedings when:

Separate arbitration agreements
or proceedings exist between the same parties, or one party is a party to
a separate arbitration agreement or proceeding with a third party;

The disputes arise from the same transactions or series of related transactions; and

There are common issues of law or fact creating the possibility of conflicting rulings by more than one arbitrator or panel of arbitrators.

The statutory requirements for consolidation are satisfied here. Petitioner is subject to binding arbitration agreements with both Mobilias and United States Fire. Both claims arise entirely out of the exact same incident—the motor vehicle collision on December 19, 2023. The primary factual inquiry across both arbitrations is substantially identical: the nature, extent, and causation of Petitioner's personal injuries, medical necessity of treatment, medical expenses, and disability resulting from the crash.

Allowing these arbitrations to run on separate tracks poses a distinct threat of inconsistent or contradictory rulings. For example, one arbitrator could determine that certain treatment or special damages are unrelated or non-compensable under the OAI policy, while a separate arbitrator could independently allocate or credit those same amounts against the UM/UIM policy, leaving Petitioner with conflicting findings and incomplete recovery on identical medical evidence. Furthermore, because the extent of benefits payable under the OAI policy directly impacts the calculation of damages, credits, and offsets under Insurance Code section 11580.2, resolution of these overlapping obligations is best addressed in a coordinated proceeding.

United States Fire's contention that a statutory UM/UIM arbitration cannot be consolidated with a contractual OAI arbitration is unavailing. UM/UIM arbitrations under Insurance Code section 11580.2 are contractual arbitrations subject to the California Arbitration Act (*Mercury Ins. Group v. Superior Court* (1998) 19 Cal.4th 332, 342). CCP section 1281.3 does not require identity of policy types or identical substantive remedies; it requires common questions of fact or law arising from the same transaction. Consolidation does not alter or merge the substantive terms of either policy. Each insurer remains entitled to assert all applicable contractual defenses, statutory offsets, and exclusions before the appointed arbitrator.

Petitioner's Motion to Consolidate

Arbitration is granted. The parties are ordered to meet and confer within 14 days regarding the selection of an agreed-upon neutral arbitrator. If the parties are unable to agree, they shall proceed pursuant to Code of Civil Procedure section 1281.6.

A Status Conference Re: Appointment

of Arbitrator is set for September 8, 2026, at 8:30 a.m. in Dept. 310

Petitioner to give notice.